TAWANDA STANLEY MANGWENDE
In his official capacity as the Executor of
Estate Late James Joni Mangwende DR 3640 / 25
and
ELIZABETH MANGWENDE
versus
JABULANI JAPI
and
COLLETA GOKA
Cited herein in her official capacity as the executrix dative of the Estate Late
BRANDINA ZIDZAWO DR NO: 3551/22.
and
MASTER OF THE HIGH COURT
and
CITY OF HARARE

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE; 26 February & 7 May 2026

Opposed Application

T James, for Applicants
E Nyamanhete, for 1st Respondent
E Chizengera, for 2nd Respondent
No appearance for 3rd and 4th Respondents

TSANGA J

This is an application by the applicant, a beneficiary in a deceased estate, seeking to set aside the sale by the executor and subsequent cession of immovable property known as Stand 9099 Salisbury Township measuring 240 square meters. It is more commonly known as 6 Samuriwo St, National, Mbare, Harare. The applicant further seeks the setting aside of the final liquidation and distribution account approved by the Master.

The applicant is Tawanda Stanley Mangwende, in his official capacity as the Executor of the Estate Late James Joni Mangwende, who died on 22 May 2018, and, was his father. His father was also one of the children of the late Brandina Zidzawo who died in 2007 and who owned the property in question. The second applicant is the applicant's mother and the late James Joni Mangwende's widow. She is therefore not an heir to Brandina Zidzawo's

estate even though she is cited as the second applicant in this matter. For purposes of maintaining the correct legal position, this judgment will simply refer to the first applicant as being the applicant in this matter.

The first respondent is Jabulani Japi (the purchaser) who bought the said house which applicant seeks to have the sale set aside. The second respondent is the Colleta Goka in her official capacity as the Executrix Dative of the Estate Late Brandina Zidzawo, (the executor). She was also one of the late Brandina Zidzawo's children. At the time of registering her estate only the executor was the surviving child of the deceased, although the other children have beneficiaries. The third respondent is the Master of the High Court (the Master). The fourth respondent is the City of Harare, the cedent of the property.

Background Facts

The gist of the application to set aside the sale of the house which belonged to his grandmother, the late Brandina Zidzawo, who died in 2007, is that it was sold at a gross under value, way below market value. His grievance is that the executor, his aunt being his late father's sister, sold the property to a third-party purchaser, Jabulani Japi, for the sum of US$20,000.00. The sale was approved by the Master, and the property ceded to the purchaser. The liquidation and distribution account was approved.

Applicant says that he obtained two valuations which priced the house at US$35 000.00, which valuations he says he communicated telephonically to the executor. Furthermore, applicant asserts that as a beneficiary of his father's share, the sale was without his knowledge that his grandmother's estate had been registered. Although he was aware of the intention to sell the property, he was not, however, aware that the estate had been formally registered or that the sale had been concluded.

The executor maintains that the applicant and his mother were aware of the sale process. The executor further asserts that all beneficiaries, including the applicant, received their shares. The purchaser aligns with the executor's position and emphasizes that the sale was conducted lawfully and approved by the Master. The purchaser also avers that the payment to the beneficiaries who included the applicant and his mother was made in his presence. He also makes an important point that having had knowledge of the sale from September 2024 as they were given notice to vacate, if indeed they had a *bona fide* claim they would not have waited to bring this application one year later as they have done and upon being evicted. He also argues that the applicant has not provided sufficient evidence to substantiate the claim that the property was sold below market value.

Issues for Determination

The following issues arise for determination:

1. Whether the sale of the property was irregular or unlawful.
2. Whether the applicant had knowledge of, or acquiesced in, the sale.
3. Whether the property was sold at a gross undervalue sufficient to warrant interference by the court.
4. Whether the approved liquidation and distribution account should be set aside.

Analysis

Addressing the legality of the sale and whether applicant had knowledge of it, it is trite that an executor administers a deceased estate under the supervision of the Master and in accordance with the law. Once the Master has approved the sale of estate property and confirmed the liquidation and distribution account, such decisions carry significant legal weight and are not lightly interfered with by the courts. In this instance the Master gave his approval for the sale of the property. The applicant does not deny that he had knowledge that the property was to be sold but tries to separate that knowledge from that of the registration of the estate. Applicant was fully aware that his grandmother's estate was being wound up as one of the evaluation reports clearly speaks to that purpose. Furthermore, once the property was sold, the evidence on record shows that the beneficiaries were paid out. There are supporting affidavits from beneficiaries to support this averment and there is no reason laid out why applicant would have been excluded. This court therefore accepts the assertion that all beneficiaries were paid their due share including the applicant and his mother.

On the question of undervalue, the applicant bears the onus to demonstrate that the property was sold at a grossly inadequate price. A mere assertion that the property was worth US$35,000.00, without evidence of market conditions, is insufficient. Applicant himself points the court to *Mapedzamombe* v *Commercial Bank of Zimbabwe & Anor* 1996 (1) ZLR 257 (S) which, although dealing with a sale by the Sheriff, nonetheless points to the grave difficulties in setting aside a confirmed sale in the absence of an allegation of bad faith, or knowledge of prior irregularities in the sale, or fraud. Once approved legally even arguments of a low price will not vitiate a sale.

Mr Nyamanhete the executor 's lawyer relied on a sale in execution scenario from *Morfopoulos* v *Zimbabwe Banking Corporation Ltd & Ors* 1996 (1) ZLR 626 (H). The principle in this case is that a party challenging a sale on the basis of a low price, must produce properly supported valuations of the property under consideration. These must

reflect the upper and lower limits of the suggested market price; or proof of some other equitable basis for interference. This was not done as the valuations were time specific and simply concentrated on the best price reasonably obtainable as of the valuation date as a guideline.

Notably, with no valuation reports detailing comparable sales between the upper and lower range, the court cannot conclude that the sale price of US$20,000.00 was manifestly unreasonable. Furthermore, the applicant's own version undermines his case. He concedes that he was aware that the property was being sold and claims to have communicated valuation figures to the executor. This suggests a level of knowledge and engagement inconsistent with his claim of ignorance. His argument that he was unaware of the formal registration of the estate does not negate awareness of the sale itself.

As to whether the applicant had knowledge of the sale, the property was sold to the purchaser according to the agreement of sale on 24 September 2024. The applicant thereafter obtained two valuations from two different valuators for the property. The first evaluation is dated 30 September 2024 whilst the second was dated 24 October 2024. Both put the estimated market value at US$35 000.00. Both valuations were clear in their notes that the value was not binding but mere a guideline. It is also very evident that particularly from the first valuation, that the applicant sought the valuation fully aware of the probate situation in his grandmother's estate and the interest his late father had in that estate. It is therefore not true that he was unaware that the estate had been registered. He sought these valuations after the house had been sold. As for the offers that he avers in his founding affidavit, none of the offers were for US$35 000.00. There were three offers attached, one being for US$31 000, 00, another for US$34 000.00 and the third for US$33 000.00. Two of them are undated and so it is not clear at what date the offers were made presumably after the valuations. The third offer for US$33 000.00 has two dates, being 31 December 2024 and 3 December 2024. Whatever the correct date, the sum total is that the offer was made long after the property had already been sold. The quest for the valuations was indeed an afterthought.

The timing of the application is also significant. The executor's uncontested assertion is that all beneficiaries received their shares following the Master's directive. The challenge appears to have been instituted only after such distribution. Courts are generally reluctant to reopen finalized estate matters, particularly where third-party rights, such as those of a bona fide purchaser, have intervened.

With respect to the purchaser, there is no evidence of fraud, collusion, or bad faith. The purchaser acquired the property following a sale approved by the Master and is entitled to protection as a bona fide purchaser for value without notice of any irregularity.

As regards the liquidation and distribution account, once confirmed by the Master, it is binding unless set aside on review for good cause shown. The applicant has not demonstrated any procedural irregularity, misrepresentation, or material non-disclosure that would justify such interference.

Conclusion

The applicant has failed to establish that the sale of the property was unlawful, irregular, or conducted at a gross undervalue. He has also failed to show that he lacked knowledge of the sale or that there exist grounds to set aside the liquidation and distribution account.

Costs

While the applicants' case is ultimately unsuccessful, I am not persuaded that it meets the high threshold required to justify a punitive costs order. The applicant's request for valuations, though ill-timed and legally unsustainable following the completion of the sale, appears to have been motivated by a concern, however misplaced, regarding the adequacy of the consideration received for the property. Although claim was instituted after receiving a share, the mere fact that the applicant accepted a share of the proceeds does not, without more, conclusively establish that any subsequent challenge to the transaction was merely vexatious. The conduct complained of, while inconsistent, does not give rise to the level of reprehensibility ordinarily required to warrant a punitive costs order. Family disputes over a deceased's assets are the kind of matters where there is often more to the matter than meets the eye. Family members who have obtained a free ride over the years may be reluctant to let go of a benefit for a multitude of reasons. As for his seeming lack of absolute honesty, it is also the duty of legal practitioners to ensure that they are not being used to hook-wink the court by their clients.

Ultimately, courts must also remain mindful that litigants should not be unduly discouraged from approaching the courts to ventilate their grievances. To mulct the first applicant in punitive costs in circumstances such as these may have an undesirable chilling effect on the exercise of that right.

I am satisfied that an award of costs on the ordinary scale will adequately compensate the first and second respondents.

In the result, it is ordered as follows:

1. The application to set aside the sale and transfer of the immovable property is dismissed.
2. The application to set aside the final liquidation and distribution account is dismissed.
3. The first applicant shall bear the costs of this application.

TSANGA J:……

Sithole & James Legal Counsel: Applicant's Legal Practitioners
Patisani and Associates: 1st Respondent's Legal Practitioners
Legal Aid Directorate: 2nd Respondent's Legal Practitioners